



National Insurance (Old persons' and widows' pensions and attendance allowance) Act 1970

1970 CHAPTER 51

An Act to provide for retirement pension and widow's benefit under the National Insurance Act 1965 for or in respect of persons over pensionable age on 5th July 1948; to reduce from fifty to forty the qualifying age for widow's pension under section 28 of that Act and to relax further the conditions for such a pension and for a wife's retirement pension by virtue of her husband's insurance; to make provision for attendance allowance and the establishment and functions of an Attendance Allowance Board; and for purposes connected with the matters aforesaid.

[23rd July 1970]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to the provisions of the principal Act and this Act—

- (a) a person who was over pensionable age on 5th July 1948 and satisfies such conditions as may be prescribed shall be entitled to a retirement pension payable for life at such weekly rate not exceeding £3 as may be prescribed; and
- (b) a woman whose husband is entitled to a retirement pension by virtue of the preceding paragraph shall, if she is over pensionable age and has retired from regular employment and satisfies such other conditions as may be prescribed, be entitled to a retirement pension payable for life at such weekly rate not exceeding

Pensions for or in respect of persons over pensionable age on 5th July 1948.

£1 17s. 0d. (and, as from 14th February 1971, not exceeding £1·85) as may be prescribed ;

and provision may be made by regulations for the payment of widow's benefit or a retirement pension at prescribed rates to a widow whose husband was over pensionable age on 5th July 1948 or to a woman whose marriage to a husband who was over pensionable age on that date was terminated otherwise than by his death.

(2) Provision may also be made by regulations for—

- (a) modifying paragraph (b) of section 41(4) of the principal Act (which relates to increases of retirement pension which are payable in respect of children) so as to secure that the cases to which that paragraph applies include cases where the man or his wife is entitled to a retirement pension by virtue of the preceding subsection ; and
- (b) reducing the amount by which, apart from this subsection, a retirement pension payable by virtue of paragraph (a) of the preceding subsection falls to be increased in pursuance of section 43 of the principal Act (which relates to increases for adult dependants) ;

and except so far as regulations provide otherwise any reference in the principal Act to a retirement pension for a woman by virtue of her husband's insurance shall be construed as including a reference to a retirement pension for a woman by virtue of paragraph (b) of the preceding subsection.

2. In section 28 of the principal Act (which relates to widows' Pensions for pension and includes among the conditions on which such a widows aged pension is payable the condition that the widow had attained 40 to 50. the age of fifty at the relevant time there specified)—

- (a) for the word "fifty" in subsections (2)(b) and (3)(a) there shall be substituted the word "forty" ; and
- (b) after subsection (3) there shall be inserted the following subsection :—

(3A) The weekly rate of a widow's pension payable to a widow who was under the age of fifty at the time when her husband died or, as the case may be, when she ceased to be entitled to a widowed mother's allowance shall be reduced by an amount equal to 7 per cent. of its amount apart from this subsection multiplied by the number of years by which her age at that time was less than fifty (any fraction of a year being counted as a year).

Further relaxation of conditions for widow's pension and for wife's retirement pension by virtue of her husband's insurance.

3. Section 28(2)(a) and (3)(b) of the principal Act (under which it is a condition of entitlement to a widow's pension that the relevant marriage had subsisted for three years) and section 32(3)(c) of that Act (under which a woman may be required to satisfy additional prescribed conditions in order to qualify for a retirement pension by virtue of the insurance of a husband whom she married after attaining pensionable age) shall cease to have effect; but regulations may provide that, where a husband attained pensionable age before the date of the marriage and died within the period of one year beginning with that date, a widow's pension shall not be payable to his widow in pursuance of section 28 of the principal Act and a retirement pension shall not be payable to her by virtue of his insurance or shall in either case be so payable at a reduced rate ascertained in the prescribed manner.

Attendance allowance.

4.—(1) There shall be an additional description of benefit under the principal Act which shall be called attendance allowance.

(2) Subject to the provisions of the principal Act and this Act, a person shall be entitled to an attendance allowance at the weekly rate of £4 if he satisfies prescribed conditions as to residence or presence in Great Britain and either—

- (a) he is so severely disabled physically or mentally that he requires from another person, in connection with his bodily functions, frequent attention throughout the day and prolonged or repeated attention during the night; or
- (b) he is so severely disabled physically or mentally that he requires continual supervision from another person in order to avoid substantial danger to himself or others.

(3) Subject to the following provisions of this section, the period for which an attendance allowance is payable to any person shall be that specified in a certificate issued in respect of him by the Board established in pursuance of the following section as being a period throughout which he has satisfied or is likely to satisfy one of the conditions mentioned in paragraphs (a) and (b) of the preceding subsection and which is immediately preceded by a period of not less than six months throughout which he satisfied or is likely to satisfy such a condition.

(4) An attendance allowance shall not be payable to a person for any period preceding the date on which he makes a claim for it, and regulations may provide that an attendance allowance shall not be payable to a person in respect of any period when he is a person for whom accommodation is provided in pursuance

of Part III of the National Assistance Act 1948, section 12 of the Health Services and Public Health Act 1968 or Part IV of the Social Work (Scotland) Act 1968.

1948 c. 29.
1968 c. 46.
1968 c. 49.

(5) Regulations may provide that subsections (2) to (4) of this section, and any other provision of this Act so far as the provision relates to any of those subsections, shall have effect in relation to a severely disabled person who is under the age of sixteen subject to such modifications as may be prescribed; but nothing in this subsection authorises any increase in the rate of attendance allowance.

5.—(1) There shall be a body which shall be called the Attendance Allowance Board and shall have—

The
Attendance
Allowance
Board.

(a) the functions conferred on the Board by virtue of any provision of this Act other than the following paragraphs; and

(b) the function of advising the Secretary of State on such matters as he may refer to them relating to—

(i) the operation of the provisions of the principal Act and this Act in relation to attendance allowance (including questions as to the advisability of amending those provisions);

(ii) the exercise, in relation to attendance allowance, of his powers under those provisions; and

(c) such other functions, if any, as the Secretary of State may determine.

(2) Subject to the following subsection, the Board shall consist of a chairman appointed by the Secretary of State and not less than four nor more than nine other members so appointed; and all except two of the members of the Board appointed in pursuance of this subsection must be, and those two or either of them may be, medical practitioners.

(3) The Secretary of State may appoint such persons as he considers are specially qualified for the purpose, whether medical practitioners or not, to be additional members of the Board; but such a member shall not be entitled to act as a member of the Board in relation to the functions mentioned in subsection (1)(a) of this section.

(4) The Board may appoint persons as advisers to the Board on matters on which in the opinion of the Board those persons are specially qualified.

(5) The Board may refer any individual case for investigation and report to one or more persons specially qualified in the opinion of the Board to investigate that case.

(6) The Board may delegate any of their functions in respect of any individual case to one or more medical practitioners, and any functions so delegated shall be exercised by the practitioners in accordance with any directions of the Board.

(7) Schedule 1 to this Act shall have effect with respect to the Board, but regulations may make provision as to their constitution and procedure and may repeal any provision of that Schedule.

(8) In this section "medical practitioner" means a registered medical practitioner and in subsection (6) of this section includes a person outside the United Kingdom who is not a registered medical practitioner but has qualifications corresponding, in the opinion of the Secretary of State, to those of a registered medical practitioner.

Additional provisions with respect to attendance allowance.

6.—(1) Regulations may provide—

- (a) for a claim for an attendance allowance to be made during the period of six months mentioned in section 4(3) of this Act and for an award to be made in pursuance of the claim subject to the condition that the person to whom the claim relates satisfies a condition there mentioned throughout that period ;
- (b) for the review of such an award if at any time it is found that no condition so mentioned was satisfied at some time during the period of the award or the interval between the making of the award and the beginning of that period.

(2) Notwithstanding anything in Part IV of the principal Act but subject to the following provisions of this section, any question whether a person satisfies or has satisfied or is likely to satisfy for any period the condition set out in paragraph (a) or paragraph (b) of section 4(2) of this Act shall be determined by the Board.

(3) The Board may—

- (a) at any time review a determination made in pursuance of the preceding subsection or this subsection if the Board are satisfied that there has been a relevant change of circumstances since the determination was made or that the determination was made in ignorance of a material fact or was based on a mistake as to a material fact ;
- (b) within the prescribed period review such a determination on any ground ;
- (c) issue a certificate in pursuance of section 4(3) of this Act or revoke or alter a certificate so issued if the Board consider it appropriate to do so in consequence of a review in pursuance of this subsection.

(4) Provision shall be made by regulations for enabling appeals to be brought to a National Insurance Commissioner, with the leave of such a Commissioner, against a determination by the Board of any question of law arising on a review in pursuance of the preceding subsection or arising in connection with a refusal by the Board to review a determination made in pursuance of subsection (2) of this section.

(5) In the preceding subsection references to the Board include references to a delegate appointed in pursuance of section 5(6) of this Act; and regulations made in pursuance of the preceding subsection may provide for the application of section 9(3) of the National Insurance Act 1966 (under which an appeal involving a question of law of special difficulty may be dealt with by a tribunal of three Commissioners) to an appeal brought in pursuance of the regulations. 1966 c. 6.

(6) Provision may be made by regulations with respect to applications for reviews of determinations in pursuance of this section and with respect to the disposal of such applications; but nothing in this subsection shall be construed as preventing such a review from being undertaken in a case where no such application is made.

7.—(1) Notwithstanding anything in section 83(1)(b)(i) of the principal Act (under which all benefit is payable out of the National Insurance Fund), payments of benefit made by virtue of section 1 of this Act and payments of attendance allowance shall be defrayed out of money provided by Parliament. Financial provisions.

(2) There shall also be defrayed out of money provided by Parliament any increase attributable to the provisions of this Act in the sums payable out of such money under any other enactment.

(3) There shall be left out of account for the purposes of section 85(4) of the principal Act (which relates to the reimbursement of expenses from the National Insurance Fund) such amount as the Secretary of State may estimate in accordance with any directions of the Treasury to be the amount of the expenses incurred by him or any government department in carrying into effect the provisions of this Act except sections 2 and 3.

(4) There shall be made out of the National Insurance Fund or the Industrial Injuries Fund into the other of those funds or the Consolidated Fund or out of money provided by Parliament into the National Insurance Fund or the Industrial Injuries Fund such payments by way of adjustment as the Secretary of State determines in accordance with any directions

of the Treasury are appropriate in consequence of the operation of any enactment relating to the repayment of benefit or other payments or the offsetting of benefit or other payments against other benefit or payments.

Supplemental. 8.—(1) In this Act—

“the appointed day” means such day as the Secretary of State may by order appoint;

“the Board” means the Attendance Allowance Board;

“modifications” includes additions, omissions and amendments and “modifying” shall be construed accordingly; and

1965 c. 51. “the principal Act” means the National Insurance Act 1965;

and references in this Act to any enactment are references to it as amended by or under any other enactment.

(2) This Act shall be construed as one with the principal Act.

(3) Without prejudice to section 106(2) of the principal Act (which relates to the exercise of the powers to make instruments conferred by that Act), different days may be appointed by an order under subsection (1) of this section for the purposes of different provisions of this Act or for the purposes of the same provision in relation to different cases.

(4) A statutory instrument containing an order under subsection (1) of this section shall be laid before Parliament after being made, and nothing in section 107 of the principal Act (which relates to parliamentary control of orders and regulations) shall apply to such an order.

(5) Section 108 of the principal Act (which provides for the consideration of regulations by the National Insurance Advisory Committee) and subsection (1) of the said section 107 shall not apply to regulations contained in a statutory instrument which is made during the period of six months beginning with the date of the passing of this Act and states that it is made in consequence of the passing of this Act; and the said section 108 shall not apply to regulations contained in a statutory instrument which states that it relates solely to matters which have been referred to the Board in pursuance of section 5(1)(b) of this Act.

1948 c. 24. (6) A statutory instrument containing regulations under section 1 of the Police Pensions Act 1948 may, notwithstanding that a draft of the regulations has not been laid or approved in pursuance of subsection (7) of that section, be made during

the period mentioned in the preceding subsection if the instrument contains such a statement as is there mentioned ; but an instrument made by virtue of this subsection shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(7) Except in prescribed cases, any benefit attributable to this Act except attendance allowance may be paid without a claim being made for it.

(8) Benefit shall not be payable by virtue of this Act for any period which precedes the appointed day.

9.—(1) The enactments specified in Part I of Schedule 2 to this Act shall have effect subject to the amendments there specified (which are consequential on other provisions of this Act). Consequential modifications of enactments.

(2) Regulations may make—

(a) such modifications of the provisions of the principal Act relating to retirement pension and of paragraphs 2 to 4 of Schedule 11 to that Act (which contain transitory provisions relating to widow's pension) as the Secretary of State considers appropriate in consequence of the passing of the provisions of this Act relating to widow's pension ;

(b) such modifications of Part IV of the principal Act (which relates to the determination of claims and questions) as the Secretary of State considers appropriate in consequence of the passing of the provisions of this Act relating to attendance allowance.

(3) The enactments mentioned in the first and second columns of Part II of Schedule 2 to this Act are hereby repealed to the extent specified in the third column of the said Part II.

10.—(1) This Act may be cited as the National Insurance Citation, (Old persons' and widows' pensions and attendance allowance) Act 1970, and this Act and the National Insurance Acts 1965 to 1969 may be cited together as the National Insurance Acts 1965 to 1970. commencement and extent.

(2) This Act shall come into force on the appointed day.

(3) Without prejudice to subsection (2) of section 8 of this Act and to the operation by virtue of that subsection, in relation to matters arising out of this Act, of any provision of the principal Act, this Act does not extend to Northern Ireland.

SCHEDULES

Section 5.

SCHEDULE 1

THE ATTENDANCE ALLOWANCE BOARD

1. The chairman and other members of the Attendance Allowance Board shall hold office for such period of not more than five nor less than three years as may be determined by the Secretary of State, but any member may by notice in writing to the Secretary of State resign office at any time and shall be eligible for re-appointment from time to time on or after the expiration of his term of office.

2. If in the opinion of the Secretary of State a member becomes unfit to continue in office or incapable of performing his duties, the Secretary of State shall forthwith declare his office to be vacant and shall notify the fact in such manner as he thinks fit, and thereupon the office shall become vacant.

3. Nothing in the preceding provisions of this Schedule applies to an additional member of the Board appointed in pursuance of section 5(3) of this Act; and each such member shall hold office for such period as the Secretary of State may determine but the Secretary of State may at any time by notice in writing to such a member terminate or otherwise alter that period and such a member may at any time by notice in writing to the Secretary of State resign office.

4. The Secretary of State shall make arrangements for securing that such of his officers and servants as he considers are required for the exercise of the Board's functions are available to act as officers and servants of the Board.

5. The expenses of the Board to such an amount as may be approved by the Minister for the Civil Service shall be paid by the Secretary of State.

6. There may be paid as part of the expenses of the Board—

(a) to all or any of the members of the Board, such salaries or other remuneration and travelling and other allowances,

(b) to persons attending their meetings at the request of the Board, such travelling and other allowances (including compensation for loss of remunerative time), and

(c) to persons appointed advisers to the Board or to whom individual cases are referred by the Board or the exercise of any of the Board's functions is delegated, such fees,

as the Secretary of State may with the consent of the Minister for the Civil Service determine.

7. The Board may act notwithstanding any vacancy among the members of the Board.

8. Subject to the provisions of this Act, the Board may regulate their own procedure (including the quorum).

SCHEDULE 2

Section 9.

CONSEQUENTIAL AMENDMENTS AND REPEALS OF ENACTMENTS

PART I

AMENDMENTS

The House of Commons Disqualification Act 1957

1957 c. 20.

1. In Part II of Schedule 1 to the House of Commons Disqualification Act 1957 (Commissions, tribunals and other bodies of which all members are disqualified) as that Schedule applies in relation to the House of Commons, after the entry relating to an Area Gas Board there shall be inserted the following entry:—

The Attendance Allowance Board.

The Public Records Act 1958

1958 c. 51.

2. In the second column of Part I of the Table at the end of paragraph 3 of Schedule 1 to the Public Records Act 1958 (which contains a list of bodies and establishments under Government Departments whose administrative and departmental records are public records for the purposes of the Act) after the entry relating to the Industrial Injuries Advisory Council there shall be inserted the following entry:—

Attendance Allowance Board.

The National Insurance Act 1965

1965 c. 51.

3. In subsections (1)(a) and (b), (2) and (3) of section 28 of the National Insurance Act 1965 (which relates to widow's pension) for the word "conditions" there shall be substituted the word "condition", and in the said subsections (2) and (3) for the word "are" there shall be substituted the word "is".

4. In section 48(2) of that Act (under which a claim for benefit may be treated as a claim for another benefit or payment) after the words "Injuries Act" in the second place where they occur there shall be inserted the words "or the Ministry of Social Security Act 1966 c. 20. 1966".

5. In section 69(1) of that Act (which relates to appeals from insurance officers) after the word "Act" there shall be inserted the words "or section 6(2) of the Act of 1970".

6. In section 71(1) of that Act (which provides for the referring of special questions) after the word "Act" where it first occurs there shall be inserted the words "or section 6(2) of the Act of 1970" and after the word "Act" in paragraph (a) there shall be inserted the words "or, as the case may be, the said section 6(2)".

7. In section 72(1) of that Act (which relates to the review of decisions) after the word "Act" where it first occurs in paragraph (c) there shall be inserted the words "or section 6(2) of the Act of 1970" and at the end of that paragraph there shall be inserted the words "or reviewed in accordance with section 6(3) of the Act of 1970".

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8. In section 81(1) of that Act (which provides for the recovery of overpayments of benefit) after the words "any benefit" there shall be inserted the words "(including attendance allowance and other benefit attributable to the Act of 1970) which was".

9. In section 105 of that Act (which relates to reciprocal arrangements with countries outside the United Kingdom) after the words "respect of" in the second place where they occur there shall be inserted the words "the need of handicapped persons for attendance".

10. In section 114(1) of that Act (which relates to interpretation) after the definition of "the Act of 1946" there shall be inserted the following:—

" 'the Act of 1970' means the National Insurance (Old persons' and widows' pensions and attendance allowance) Act 1970 ;".

1965 c. 52.

The National Insurance (Industrial Injuries) Act 1965

11. In section 15(2) of the National Insurance (Industrial Injuries) Act 1965 (which provides that while a person entitled to a disablement pension is receiving free treatment as an in-patient, no increase of the pension by reference to his need for constant attendance is to be made under that section) for the words from "no" onwards there shall be substituted the words "regulations may provide for adjusting such an increase or the conditions for the receipt of it where the beneficiary is undergoing medical or other treatment as an in-patient in a hospital or similar institution and may provide for suspending payment of such an increase to a beneficiary while he is undergoing such treatment".

1966 c. 6.

The National Insurance Act 1966

12. In section 8(2) of the National Insurance Act 1966 (which provides for the determination of certain questions) after the words "Insurance Act" in the second place where they occur there shall be inserted the words "or section 6(2) of the Act of 1970".

1966 c. 20.

The Ministry of Social Security Act 1966

13. In section 16(1)(a) of the Ministry of Social Security Act 1966 (which relates to the prevention of duplication of payments) after the word "benefit" there shall be inserted the words "attendance allowance".

PART II

REPEALS

Chapter	Short title	Extent of repeal
1965 c. 51.	The National Insurance Act 1965.	In section 28, subsections (2)(a), (3)(b) and (5)(b) and in subsections (3)(a) and (5)(a) the word "and".

Chapter	Short title	Extent of repeal
1965 c. 51. — <i>cont.</i>	The National Insurance Act 1965— <i>cont.</i>	In section 32(3), paragraph (c) and the word “and” in paragraph (b). In section 81(6) the words from “and any” onwards. In section 105(2)(d) the words from “by payments” onwards. In section 54(8) the words from “and any” onwards.
1965 c. 52.	The National Insurance (Industrial Injuries) Act 1965.	In section 54(8) the words from “and any” onwards.
1965 c. 53.	The Family Allowances Act 1965.	In section 8(3) the words from “and any” onwards.
1966 c. 20.	The Ministry of Social Security Act 1966.	Section 16(3). In section 26(4) the words from “and where” onwards.